

Ashwani K. Lal vs Deepa Kumari Chauhan on 31 October, 2019

Author: Anoop Chitkara

Bench: Anoop Chitkara

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA .

Cr.MMO No. 358 of 2016
Reserved on: 30.10.2019
Date of Decision : 31.10.2019

Ashwani K. Lal

...Petitioner.

Versus

Deepa Kumari Chauhan

...Respondent .

Coram:

The Hon'ble Mr. Justice Anoop Chitkara, Judge.

Whether approved for reporting? No For the petitioner : Mr. K.D. Sood, Sr. Advocate with Mr. Rajnish K. Lal, Advocate.

For the respondent : Mr. Rakesh Kumar Dogra, Advocate.

Anoop Chitkara, Judge Challenging the dismissal of objections filed by the petitioner/husband in execution of the maintenance awarded to respondent/wife under Section 125 Cr.P.C., the husband has come up before this Court by filing petition under Section 482 Cr.P.C.

2. The matter can be traced to an order dated 15 th June, 2011 whereby the wife, present respondent, was granted maintenance @ of Rs.

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2,000/□per month w.e.f. 15.12.2014 to 14.8.2015 i.e. for a period of eight .

months.

3. In response to such application for execution of maintenance, the husband has filed objections primarily on the grounds that divorce between the parties had attained a finality by virtue of dismissal of Special Leave Petition by Hon'ble Supreme Court vide order dated 5.12.2014. It was further contended that the payment for two months i.e. December 2014 and January 2015 stood paid and copy of the receipt was produced on the record.

4. Learned Judicial Magistrate, Ist Class, Baijnath, District Kangra, H.P., in case Reference Petition No. 121□V/2015 vide its order dated 3.10.2016, dismissed the said objections except for the month of December, 2014 and held the wife to be entitled for maintenance for a period of seven months. Challenging this order, the petitioner husband has come up before this Court by filing petition under Section 482 of the Code of Criminal Procedure.

5. I have heard Sh. K.D. Sood, Sr. Advocate assisted by Sh.

Rajnish K. Lal, Advocate for the petitioner and Sh. Rakesh Kumar ...3...

Dogra, Advocate for the respondent. I have waded through the entire .

record.

6. The main grounds for challenge are that after the passing of the decree of divorce, which was on the ground of desertion, the wife is not entitled to receive maintenance. To the contrary, learned counsel for respondent wife submitted that the divorce was also on the ground of cruelty.

7. to To answer this controversy, it would be appropriate to refer to the judgment passed by the learned District Judge (Forests), Shimla in Petition under Section 13(1) of Hindu Marriage Act, 1955. Vide judgment dated 23.12.2013 passed in HMA Petition No. 6□S/3 of 13/09, learned District Judge had held in relief clause that the petitioner husband was treated with cruelty by respondent wife.

8. The said judgment was challenged by the appellant wife and vide judgment dated 28.7.2014 passed in FAO No. 87 of 2014, a bench of this Court had dismissed the appeal. In paragraph 21, this Court has held as follows:□

21. Acts as discussed herein above definitely amount to cruelty. Appellant could not insult here husband in the presence of his senior and his friend, who was invited over the dinner. She has left the matrimonial house without the permission of her husband and ...4...

mother□n□law. This will amount to animus deserendi. The threats given by the appellant to commit suicide and to cut her veins and .

further to falsely implicate the respondent and his family members, if taken into consideration, with other allegations, also amount to cruelty. Behaviour of the appellant towards respondent was of sustained disdain.

Thus, the fact of wife being cruel to her husband has been affirmed by this Court and has attained finality.

9. The Hon'ble Apex Court in case titled Rohtash Singh v.

Ramendri, AIR 2000 Supreme Court 952, has held as follows: "[4] The principal contention raised by the learned counsel for the petitioner is that a decree for divorce having been passed under Section 13 of the Hindu Marriage Act on the ground of desertion by the respondent, an order for maintenance could not have been passed in favour of the respondent on account of sub-section (4) of Section 125, Cr. P.C. [5] Sub-section (4) of Section 125, Cr. P.C. provides as under : "(4) No wife shall be entitled to receive an allowance from her husband under this section if she is living in adultery, or if, without any sufficient reason, she refuses to live with her husband, or if they are living separately by mutual consent."

[6] Under this provision, a wife is not entitled to any Maintenance Allowance from her husband if she is living in adultery or if she has refused to live with her husband without any sufficient reason or if they are living separately by mutual consent. Thus, all the circumstances contemplated by sub-section (4) of section 125, Cr. P.C. presuppose the existence of matrimonial relations. The provision would be applicable where the marriage between the parties subsists and not where it ...5...

has come to an end. Taking the three circumstances individually, it will be noticed that the first .

circumstance on account of which a wife is not entitled to claim Maintenance Allowance from her husband is that she is living in adultery. Now, adultery is the sexual intercourse of two persons, either of whom is married to a third person. This clearly supposes the subsistence of marriage between the husband and wife and if during the subsistence of marriage, the wife lives in adultery, she cannot claim Maintenance Allowance under Section 125 of the Code of Criminal Procedure.

[7] The second ground on which she would not be entitled to Maintenance Allowance is the ground of her refusal to live with her husband without any sufficient reason. This also presupposes the subsistence of marital relations between the parties. If the marriage subsists, the wife is under a legal and moral obligation to live with her husband and to fulfil the marital obligations. She cannot, without any sufficient reason, refuse to live with her husband. "Sufficient reasons" have been interpreted differently by the High Courts having regard to the facts of individual cases. We are not required to go into that question in the present case as admittedly the marriage between the parties came to an end on account of a decree for divorce having been passed by the Family Court. Existence of sufficient cause on the basis of which the respondent could legitimately refuse to live with the petitioner is not relevant for the present case. In this situation, the only question which survives for consideration is whether a wife against whom a decree for divorce has been passed on account of her deserting the husband can claim Maintenance Allowance under Section 125 Cr.P.C.

and how far can the plea of desertion be treated to be an effective plea in support of the husband's refusal to pay her the Maintenance Allowance.

[8] Admittedly, in the instant case, the respondent is a divorced wife. The marriage ties between the parties do ...6...

not subsist. The decree for divorce was passed on 15th of July, 1995 and since then, she is under no obligation .

to live with the petitioner. But though the marital relations came to an end by the divorce granted by the Family Court under Section 13 of the Hindu Marriage Act, the respondent continues to be "wife" within the meaning of Section 125, Cr. P.C. on account of Explanation (b) to sub-section (1) which provides as under : "Explanation. For the purposes of this Chapter

(a)

(b) "wife" includes woman who has been divorced by, or has obtained a divorce from her husband and has not remarried."

[9] On account of the Explanation quoted above, a woman who has been divorced by her husband on account of a decree passed by the Family Court under the Hindu Marriage Act, continues to enjoy the status of a wife for the limited purpose of claiming Maintenance Allowance from her ex-husband. This Court in Ramesh Chander Kaushal v. Mrs. Veena Kaushal, AIR 1978 SC 1807 : (1979 Cri LJ 3), observed as under : "9. This provision is a measure of social justice and specially enacted to protect women and children and falls within the constitutional sweep of Article 15(3) reinforced by Art. 39. We have no doubt that sections of statutes calling for construction by Courts are not petrified print but vibrant words with social functions to fulfil. The brooding presence of the constitutional empathy for the weaker sections like women and children must inform interpretation if it has to have social relevance. So viewed it is possible to be selective in picking out that interpretation out of two alternatives which advances the cause the cause of the derelicts."

[9A] Claim for maintenance under the first part of Section 125, Cr. P.C. is based on the subsistence of marriage while claim for maintenance of a divorced wife ...7...

is based on the foundation provided by Explanation (b) to sub-section (1) of Section 125, Cr. P.C. If the divorced .

wife is unable to maintain herself and if she has not remarried, she will be entitled to Maintenance Allowance. The Calcutta High Court had an occasion to consider an identical situation where the husband had obtained divorce on the ground of desertion by wife but she was held entitled to Maintenance Allowance as a divorced wife under Section 125, Cr. P.C. and the fact that she had deserted her husband and on that basis a decree for divorce was passed against her was not treated as a bar to her claim for maintenance as a divorced wife. (See : Sukumar Dhibar v. Smt. Anjali Dasi, 1983 Cri LJ 36 (Cal)). The Allahabad High Court also, in the instant case, has taken a similar view.

We approve these decisions as they represent the correct legal position.

[10] Learned counsel for the petitioner then submitted that once a decree for divorce was passed against the respondent and marital relations between the petitioner and the respondent came to an end, the mutual rights, duties and obligations should also come to an end. He pleaded that in this situation, the obligation of the petitioner to maintain a woman with whom all relations came to an end should also be treated to have come to an end. This plea, as we have already indicated above, cannot be accepted as a woman has two distinct rights for maintenance. As a wife, she is entitled to maintenance unless she suffers from any of the disabilities indicated in Section 125(4). In another capacity, namely, as a divorced woman, she is again entitled to claim maintenance from the person of whom she was once the wife. A woman after divorce becomes a destitute. If she cannot maintain herself or remains unmarried, the man who was, once, her husband continues to be under a statutory duty and obligation to provide maintenance to her.

...8...

[11] Learned counsel for the petitioner then contended that the maintenance has been allowed to the .

respondent from the date of the application. The application under S. 125, Cr. P.C. was filed by the respondent during the pendency of the civil suit for divorce under Section 13 of the Hindu Marriage Act. It is contended that since the decree of divorce was passed on the ground of desertion by respondent, she would not be entitled to Maintenance for any period prior to the passing of the decree under Section 13 of the Hindu Marriage Act. To that extent, learned counsel appears to be correct. But for that short period, we would not be inclined to interfere."

10. As apparent from the concluding Paragraph 11, Hon'ble Supreme Court although stated that the counsel for the husband was right in declining the maintenance for the period prior to the passing of the decree, the Court did not interfere keeping in view the short period for which the maintenance was claimed.

11. I am bound by the proportionality relied upon by Hon'ble Supreme Court in this judgment, the amount involved pertains to the period of seven months which comes to Rs. 14,000/□@ 2,000/□ per month.

12. Sh. K.D. Sood, Senior Advocate has also placed reliance upon judgment of this Court in Manoj Kumar v. Champa Devi in Cr.MMO No. 230 of 2014 decided on 9th April, 2015 whereby on this very ground, the maintenance was refused to the wife, however, here in the ...9...

present case, the amount is very meager amounting to just Rs. 14,000/□.

and also in view of the observation of Hon'ble Supreme Court (supra), this judgment is clearly distinguishable.

31st October, 2019
(vinod)